

HEADNOTE

- “1. Rule 360 RoP (disposal of the main case) applies accordingly to requests for provisional measures.*
- 2. Rule 118.5 RoP (costs decision on the merits) applies accordingly to requests for provisional measures.*
- 3. A costs decision on the merits under Rule 118.5 RoP may be followed by a costs assessment procedure under Rule 151 RoP.”*

COURT
Local Division in Munich

PATENT
EP 3 763 331

Prosthetic valve crimping device

PROCEEDINGS
Costs order

KEYWORDS

Application for provisional measures

Discontinuance

Cost decision on merits

Cost assessment proceedings

Rule 360 No need to adjudicate

SUMMARY

The Local Division in Munich ruled on a costs order. The patent at issue relates to a prosthetic valve crimping device. According to the headnotes of the decision, the procedural rules governing how courts dispose of the main case also apply when parties request provisional measures. The same cost-allocation rules that apply to final decisions on the merits equally apply to provisional measures requests. When a court issues a costs decision on the merits for provisional measures, the parties may subsequently pursue a formal costs assessment procedure to determine the exact amount owed.